CITY OF OCEANSIDE
MEASURE R

(This measure will appear on the ballot in the following form.)

MEASURE R

To preserve the City's ability to continue receiving state infrastructure funding for public works projects, shall the Oceanside City Charter be amended to conform to state laws and best practices regarding prevailing wage and fair competition, including the use of project labor agreements for City public works with mandatory provisions for taxpayer protections, transparency, and accountability in the contracting process, by amending Sections 301, 302, and 303 of the Oceanside City Charter?

This measure requires Simple Majority (50%+1) of those voting on the measure.

CITY ATTORNEY IMPARTIAL ANALYSIS

Measure "R" was placed on the ballot by the Oceanside City Council. If approved by voters, Measure R would amend Sections 301, 302 and 303 of the Charter of the City of Oceanside ("Charter") and align the Charter with laws governing state funding and financial assistance in support of public works projects. Specifically, Measure R would affirm prevailing wage requirements for all public works projects as defined in paragraph (1) of subdivision (d) of Section 1782 of the California Labor Code and, consistent with Public Contract Code sections 2500-2503, would affirmatively allow, but not require, the City Council to enter into or require a project labor agreement ("PLA") for City public works projects that includes the taxpayer protection provisions of Public Contract Code section 2500.

The Charter was approved by Oceanside voters in 2010. As adopted, the Charter generally exempts the City from state laws regulating public works contracting except as provided by ordinance or by agreement approved by the City Council, limiting the requirement to pay prevailing wage and the ability to enter into public works contracts that require one or more provisions commonly associated with PLAs.

After the Charter was adopted in 2010, the California legislature passed Senate Bill 7 (SB 7) which enacted Labor Code Section 1782, and Senate Bills 922 and 829 (SB 922 & 829, respectively), which added Public Contract Code Sections 2500 through 2503. These laws generally disqualify local governments from receiving state funding for public works projects if they do not align with state laws governing prevailing wage and fair competition.

The City has maintained its qualified status for state public works funding based on interpretations that state law and the Charter can be reconciled. The City Attorney confirmed the City's ongoing eligibility for state funding with the Department of Industrial Relations in 2014. The City pays prevailing wage on public works projects consistent with state law under the existing Charter. The City also understood that it retained the ability to enter into a PLA consistent with the Public Contract Code. PLAs are generally pre-hire agreements between a city and labor organizations containing standard terms and conditions of employment on a public works project. PLAs typically include broad prohibitions on strikes and lockouts, uniform work rules and hours, and dispute resolution protocols. Union and non-union contractors can participate in a covered project and must adhere to the PLA requirements.

Amending the Charter now aligns with state law and eliminates possible inconsistencies that generally operate to disqualify cities with charter provisions exempting prevailing wage and PLAs from receiving state funding for local infrastructure projects. If adopted, Measure R's amendment of Sections 301, 302 and 303 would ensure the City's continuing eligibility for state funding for infrastructure projects.

A "yes" vote on Measure R favors amending the Oceanside City Charter.

A "no" vote on Measure R opposes amending the Oceanside City Charter.

The above statement is an impartial analysis of Measure R. If you desire a copy of the proposed City Code amendment, please call the City Clerk's Office at (760) 435-3001 and a copy will be mailed to you at no cost. The text of Measure R can also be accessed at the following website: https://www.ci.oceanside.ca.us/government/city-clerk/elections-fair-political-practices-commission-reporting-program/current-elections.

Dated: August 14, 2026

Steven Burke, Jr., City Attorney